
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the company "A"

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Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the company "A"
Deliberation no. 1FR/2024 of March 20, 2024

The National Commission for Data Protection sitting in a restricted formation, composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Considering the regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Considering the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection, in particular its article 41;

Considering the internal regulations of the National Commission for Data Protection adopted by decision no. 07AD/2024 dated February 23, 2024, in particular its article 10.2;

Considering the regulation of the National Commission for Data Protection regarding the investigation procedure adopted by decision no. 08AD/2024 dated February 23, 2024, in particular its article 9;

Considering the following:

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1.
During its deliberation session on September 15, 2023, the National Commission for Data Protection (hereinafter: the "CNPD" or the "National Commission") sitting in plenary formation decided to open an investigation into the company "A" based on article 38 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection (hereinafter: the "law of August 1, 2018") and to appoint Mr. Alain Herrmann as the head of the investigation.

2.
The said decision specified that the investigation conducted by the National Commission aimed to verify the application and compliance with regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the "GDPR"), the law of August 1, 2018, and more specifically the compliance with article 30 of the GDPR concerning the register of processing activities and legal texts providing specific provisions regarding the protection of personal data.¹

3.
The company "A" is [...] registered in the Trade and Companies Register of Luxembourg under number [...] and has its registered office at [...], [...] (hereinafter: the "controlled entity"). The controlled entity has the purpose of "[banking establishment]"².

4.
On September 20, 2023, agents of the CNPD conducted an on-site visit at the registered office of the controlled entity.

5.
By emails dated September 21 and 22, 2023, the controlled entity provided the CNPD with additional information requested during the said visit.

6.

The "Report no. [...] regarding the on-site visit conducted on September 20, 2023 at the company A" (hereinafter: the "report regarding the on-site visit") prepared by the agents of the CNPD was sent to the controlled entity by email on October 11, 2023.

7.

By email dated October 26, 2023, the controlled entity submitted its position regarding the report concerning the on-site visit to the agents of the CNPD.

1 Deliberation No. [...] of [...] of the National Commission for Data Protection regarding the opening of an investigation mission with the company "A".

2 According to the certified extract from the Trade and Companies Register dated [...] and sent to the CNPD by the controlled entity on September 22, 2023.

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8. At the end of its investigation, the head of the investigation notified the controlled party on February 6, 2024, of a "finding of absence of grievances," specifying that the checks carried out in the context of the investigation led him not to retain grievances related to the subject of the investigation against the controlled party (hereinafter referred to as the "finding of absence of grievances").

9. By email dated February 28, 2024, the head of the investigation transmitted the investigation file to the National Commission sitting in a restricted formation (hereinafter referred to as the "Restricted Formation") along with a proposal for closure (hereinafter referred to as the "proposal for closure").

10. The Restricted Formation examined the case during the deliberation session on March 20, 2024.

11. The decision of the Restricted Formation on the outcome of the investigation is based on:

- the maintenance by the controlled party of a register of processing activities pursuant to Article 30.1, 3, and 4 of the GDPR; and
- the legal and regulatory provisions taken into account by the head of the investigation in his communication of absence of grievances.

12. Article 30 of the GDPR states that:

"1. Each controller and, where applicable, the representative of the controller shall maintain a record of processing activities under its responsibility. This record shall contain all of the following information:

- a) the name and contact details of the controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer;
- b) the purposes of the processing;
- c) a description of the categories of data subjects and of the categories of personal data;
- d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;

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e) where applicable, transfers of personal data to a third country or to an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49(1), second subparagraph, the documents evidencing the existence of appropriate safeguards;

f) where possible, the envisaged time limits for erasure of the different categories of data;

g) where possible, a general description of the technical and organizational security measures referred to in Article 32(1).

[...]

3. The records referred to in paragraphs 1 and 2 shall be in written form, including in electronic form.
4. The controller or the processor and, where applicable, their representative shall make the record available to the supervisory authority on request.
[...]"

13. The Restricted Formation first notes that during the on-site visit on September 20, 2023, the controlled party stated that it had established a register of processing activities (hereinafter referred to as the "processing register"), but that it was not able to provide it to the agents of the CNPD "given that the Controlled Party is in a transition period due to [...]. The register of processing activities is presented in the form of several documents extracted from different tools (particularly the HR part) [...], which will no longer be the case in the future and is in the process of being integrated into a new tool." However, the processing register was shown to the agents of the CNPD during their on-site visit.

14. All documents requested by the agents of the CNPD during the on-site visit, including the processing register, were communicated to them by the controlled party on September 21 and 22, 2023.

15. By email dated October 26, 2023, the controlled party specified that the agents of the CNPD noted, during the on-site visit, the existence of the register, notably through photographs taken.

3 Minutes relating to the on-site visit, part I, points 3, 4, and 5.

4 See Annex 3 of the minutes of the on-site visit titled "Inventory of documents collected and/or requested by the Agents during the on-site visit."

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of the register of processing activities, but that its submission "was not practical for the following reasons:

- the immediate submission to the agents would have been technically complex as [...] is subject to very strict security rules, including internal protection measures for IT equipment such as the blocking of USB ports;
- as mentioned during the visit, [...] extracting the Register in its current state would have been difficult for the CNPD to utilize."

16. The Restricted Formation further notes that the head of the investigation states in the absence of grievances report that "the Controlled presented to the agents of the CNPD, on the day of the on-site visit, a register of processing activities. The register was communicated to the agents in electronic format the day after the on-site visit and contains all the categories of information required under Article 30.1 of the GDPR." She therefore notes that it appears from the investigation file that the agents of the CNPD checked the existence of the register of processing activities of the controlled entity and verified that all the information required by Article 30.1 of the GDPR was included.

17. She finally notes that the head of the investigation specified in the closure proposal that he believed the investigation had not revealed any facts constituting a violation of the GDPR or the law of August 1, 2018.

18. Consequently, after analyzing the file, the Restricted Formation finds that the register of processing activities of the controlled entity indeed contains all the information required by Article 30.1 of the GDPR. She therefore agrees with the proposal of the head of the investigation and is of the opinion that the investigation can be closed in accordance with Article 10.2.a) of the internal regulations of the CNPD.

In light of the developments above, the National Commission sitting in a restricted formation, after deliberation, decides:

- to close the investigation opened during the session of September 15, 2023, of the National

Commission for Data Protection regarding the company "A."

5 Absence of grievances report, point "2. Facts observed."

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Belvaux, March 20, 2024.

The National Commission for Data Protection sitting in a restricted formation

Tine A. Larsen

Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of appeal avenues

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.